

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Nathan Vu

Department N15

Hearing Date and Time: August 17, 2026 @ 9:00 AM

TENTATIVE RULINGS: The court will endeavor to post tentative rulings on this website by 3:00 p.m. on the day before the hearing. However, ongoing proceedings may prevent posting by that time or the court may have no tentative ruling on a matter.

Once a tentative ruling has been posted, the court may not entertain requests for continuance and may not consider additional papers.

ORAL ARGUMENT: The court will hear oral argument regarding law and motion matters on the hearing date and at the time stated above, unless all parties submit on the tentative ruling. Parties are not required to give notice of intent to appear.

If you wish to submit on the tentative ruling and do not intend to appear at the hearing, please inform opposing counsel and the court clerk by electronic mail n15@occourts.org or by telephone (657) 622-5615. If all parties submit on the tentative ruling or no parties or counsel appear for the hearing, then the tentative ruling shall become the final ruling.

APPEARANCES: Parties and counsel may appear at the law and motion hearing in-person or via Zoom. Persons appearing in-person shall come to Department N15 at the North Justice Center, 1275 N. Berkeley Avenue, Fullerton, CA 92832.

Persons appearing remotely must check-in online through the court's website at <https://www.occourts.org/general-information/covid-19-response/civil-covid-19-response/civil-remote-hearings> and then clicking on the button entitled "Department N15 Judge Nathan Vu".

Anyone having difficulty appearing remotely may contact the court clerk at (657) 622-5615.

All persons appearing remotely must abide by all applicable laws and rules, including Local Rule 375, and must obtain, test the functionality of, and learn how to use the Zoom application and all necessary equipment prior to the remote hearing. More information is available at <https://www.occourts.org/media-relations/civil.html>.

COURT REPORTERS: Court reporters employed by the court are NOT normally provided for law and motion matters in civil courtrooms. If a party desires a record of a law and motion proceeding, it is the party's responsibility to arrange for a privately-retained court reporter, who may appear in-person or remotely. Parties must comply with the Court's policy on the use of privately-retained court reporters, available at https://www.occourts.org/media/pdf/Private_Retained_Court_Reporter_Policy.pdf.

1	Goguen vs. Hoag Memorial Hospital Presbyterian 30-2025-01536826	There is no full written tentative ruling in this matter. Instead, the court provides the following summary tentative ruling and will hear from the parties or their counsel at oral argument. <u>Demurrer</u> Defendants Salman N.M. Okour, M.D.'s and Francis Chang, M.D.'s Demurrer to Plaintiff's Complaint is SUSTAINED with 15 days leave to amend as to the 4th Cause of Action. If Plaintiffs Kyle Goguen and Lyndsay Goguen do not amend the Complaint for Damages within the period of time stated above, Defendants Salman N.M. Okour, M.D. and Francis Chang, M.D. shall file an answer or other pleading in response to the remaining causes of action of the Complaint for Damages within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court, rule 3.1320(j).) <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (<i>Serrano v. Priest</i> (1971) 5 Cal.3d 584, 591, citation omitted; see <i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318). Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W.</i>
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		<i>Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) However, “where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents.” (<i>Jimenez vs. Mrs. Gooch’s Natural Foods Markets, Inc.</i> (2023) 95 Cal.App.5th 645, 653.) In addition, the “allegations must be liberally construed, with a view to substantial justice between the parties.” (See Code Civ. Proc., § 452.) Nonetheless, it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413). Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (<i>Schmid v. City and County of San Francisco</i> (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).) <u>4th Cause of Action</u> <i>Thing v. La Chusa</i> (1989) 48 Cal.3d 644 controls in this case. The cases cited by Plaintiffs have either been criticized by <i>Thing v. La Chusa</i>, such as <i>Andalon v. Superior Court</i> (1984) 162 Cal.App.3d 600, or predate <i>Thing v. La Chusa</i>. such as <i>Tarasoff v. Regents of University of California</i> (1976) 17 Cal.3d 425, <i>Myers v. Quesenberry</i> (1983) 144 Cal.App.3d 888, <i>Andalon v. Superior Court</i> (1984) 162 Cal.App.3d 600, <i>Hedlund v. Superior Court</i> (1983) 34 Cal.3d 695, and <i>Molien v. Kaiser Foundation Hospitals</i> (1980) 27 Cal.3d 916. The Complaint fails to allege that Kyle Goguen was “present at the scene of the injury-producing event at the time it occurs
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		and is then aware that it is causing injury to the victim.” (<i>Thing v. La Chusa, supra</i>, 48 Cal.3d at p. 702), such that he “contemporaneously and sensorily perceived” the event. The Plaintiffs cite to several cases that were decided after <i>Thing v. La Chusa</i>, such as <i>Reisner v. Regents of University of California</i> (1995) 31 Cal.App.4th 1195; <i>Ewing v. Goldstein</i> (2004) 120 Cal.App.4th 807; <i>Williams v. Superior Court</i> (1994) 30 Cal.App.4th 318, and <i>Gutierrez v. Tostado</i> (2025) 18 Cal.5th 222 However, all of these cases are distinguishable and do not apply here. Defendants Salman N.M. Okour, M.D. and Francis Chang, M.D. shall give notice of this ruling.
2	Bevli vs. Desai 30-2024-01413516	<u>Demurrer and Motion to Strike</u> There is no written tentative ruling at this time. The court may give an indication of its thinking at oral argument and will hear from the parties or their counsel at that time.
3	April Parker Foundation, Inc. vs. The Orange County Health Authority 30-2026-01553304	<u>Motion to Be Relieved as Counsel</u> There is no written tentative ruling at this time. The court is concerned whether Petitioner April Parker Foundation, Inc. will be prejudiced by the withdrawal of counsel because its opening brief is due in approximately 3 ½ weeks.
4	Solaia Capital Management LLC vs. Kairos Manford Private Equity Fund I LP 30-2021-01233896	<u>Motion to Strike or Tax Costs</u> There is no written tentative ruling at this time. The court will hear from the parties or their counsel at oral argument.

5	Cordova vs. American Honda Motor Co., Inc. 30-2023-01358135	There is no full written tentative ruling in this matter. Instead, the court provides the following summary tentative ruling and will hear from the parties or their counsel at oral argument. <u>Motion to Enforce Settlement</u> Plaintiff Maria Cordova's Motion to Enforce Settlement is GRANTED. <u>Standard to Enforce Settlement</u> <u>Standard for Entry of Judgment Pursuant to Settlement Agreement / Enforcement of Settlement Agreement</u> Civil Procedure Code section 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6, subd. (a).) As the Court of Appeal has explained: The purpose of section 664.6 is "to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." "If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement." (<i>Greisman v. FCA US, LLC</i> (2024) 103 Cal.App.5th 1310, 1321, quoting <i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809; see also <i>Eagle Fire and Water Restoration, Inc. v. City of Dinuba</i> (2024) 102 Cal.App.5th 448, 457 ["section 664.6 provides an expedited procedure for enforcing the parties' settlement agreement"]; <i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182 ["Code of Civil Procedure section 664.6 provides a summary procedure to enforce a settlement

		agreement by entering judgment pursuant to the terms of the settlement.”].) Pursuant to Section 664.6, “even though a settlement may call for a case to be dismissed, or the plaintiff may dismiss the suit of its own accord, the court may nevertheless retain jurisdiction to enforce the terms of the settlement, until such time as all of its terms have been performed by the parties, <i>if the parties have requested this specific retention of jurisdiction.</i>” (<i>Wackeen v. Malis</i> (2002) 97 Cal.App.4th 429, 439, italics original.) However, “[a] trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented . . . to the material terms of the settlement.” (<i>Bowers v. Raymond J. Lucia Companies, Inc.</i> (2012) 206 Cal.App.4th 724, 732.) Thus, before granting a motion to enforce a judgment, the court must determine “whether the parties entered into a binding settlement agreement of all or part of a case.” (<i>In re Marriage of Assemi</i> (1994) 7 Cal.4th 896, 911.) In making this determination, “a trial court should consider whether (1) the material terms of the settlement were explicitly defined, (2) the supervising judicial officer questioned the parties regarding their understanding of those terms, and (3) the parties expressly acknowledged their understanding of and agreement to be bound by those terms.” (<i>Ibid.</i>) Plaintiff has offered sufficient admissible evidence that the Civil Procedure Code section 998 offer constituted a valid and binding settlement agreement of the entirety of the case, that both parties agreed to all material settlement terms, that the 998 offer and acceptance was signed by all parties’ counsel, and that the settlement agreement was made pending litigation.
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6	Ragland vs. Wells Fargo Bank, N.A. 30-2023-01346326	There is no full written tentative ruling in this matter. Instead, the court provides the following summary tentative ruling and will hear from the parties or their counsel at oral argument. <u>Motions for Reconsideration</u> Plaintiff Sawyer Ragland's Motion for Reconsideration of AntiSLAPP Opposition to Non-Party Wells Fargo Bank, N.A. as Trustee is taken OFF CALENDAR. Plaintiff Sawyer Ragland's Motion for Reconsideration of Demurrer Opposition to Non-party Wells Fargo Bank, N.A. as Trustee is taken OFF CALENDAR. Code of Civil Procedure section 916 provides: Except as provided in Sections 917.1 to 917.10, inclusive, . . . the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order. (Code Civ. Proc., s 916, subd. (a).)

		Here, Plaintiff seeks reconsideration of the court orders for which he has filed notices of appeal. Proceedings regarding these orders are stayed and this court is without jurisdiction to rule on the motions for reconsideration. Therefore, the court will take the motions off calendar.
7	MacRobie vs. Forward Financing LLC 30-2026-01552515	<u>Application to Appear Pro Hac Vice</u> The Verified Application for <i>Pro Hac Vice</i> Admission of Claire Daly is GRANTED. <u>Pending Motion</u> Counsel Claire Daly of Goodwin Procter LLP in New York, New York applies to appear as counsel <i>pro hac vice</i> for Defendant Forward Financing LLC. <u>Standards to Appear Pro Hac Vice</u> An attorney in good standing in another jurisdiction who has been retained to appear in a case pending this court may apply to appear as counsel <i>pro hac vice</i> in the State of California, so long as an active member of the State Bar of California is associated as attorney of record in the case. (Cal. Rules of Court, rule 9.40(a).) The attorney desiring admission <i>pro hac vice</i> must file a verified application and a proof of service showing service by mail of a copy of the notice of hearing and application on all parties who have appeared in the case and on the State Bar of California at its San Francisco office, along with payment of a \$50.00 fee. (Cal. Rules of Court, rule 9.40(c)(1) & (e).) The application must state: 1. the applicant's residence and office addresses;

		2. the courts to which the applicant has been admitted to practice and the dates of admission; 3. that the applicant is a member in good standing in those courts; 4. that the applicant is not currently suspended or disbarred in any court; 5. the title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and 6. the name, address, and telephone number of the active member of the State Bar of California who is attorney of record in the local action. (Cal. Rules of Court, rule 9.40(d).) The “application to be admitted ‘pro hac vice’ is addressed to the court’s sound discretion.” (<i>Big Lots Stores, Inc. v. Superior Court of San Diego County</i> (2020) 57 Cal.App.5th 773, 779.) However, courts have “embraced the conviction ‘that the state should keep to a necessary minimum its interference with the individual’s desire to defend himself in whatever manner he deems best.’” (<i>Magee v. Superior Court</i> (1973) 8 Cal.3d 949, 952, quoting <i>People v. Crovedi</i> (1966) 65 Cal.2d 199, 208.) Thus, the “right to appear by retained counsel of one’s choice will tolerate the denial of an application for association only in extreme circumstances, although the attorney permitted to appear as counsel <i>pro hac vice</i> is “subject to the jurisdiction of the courts of California with respect to the law governing the conduct of attorneys.” (<i>Magee v. Superior Court</i> (1973) 8 Cal.3d 949, 953, fn. 1.)
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8	Singh vs. Montano 30-2024-01403527	<u>Motion for Terminating Sanctions</u> There is no written tentative ruling at this time. The court may give an indication of its thinking at oral argument and will hear from the parties or their counsel at that time.
9	Hasso vs. Union Trading Company, W.L.L. 30-2025-01521767	<u>Motion to Set Aside</u> There is no written tentative ruling at this time. The court may give an indication of its thinking at oral argument and will hear from the parties or their counsel at that time.
10	Valdez vs. Park West Landscape Maintenance, Inc. 30-2025-01458373	<u>Motion for Summary Adjudication</u> There is no written tentative ruling at this time. The court may give an indication of its thinking at oral argument and will hear from the parties or their counsel at that time.
11	Vickers vs. L.G. Falconer Trust 30-2023-01363812	<u>Motion for Summary Adjudication</u> There is no written tentative ruling at this time. The court may give an indication of its thinking at oral argument and will hear from the parties or their counsel at that time.